THE STATE

Versus

KHULEKANI MPOFU

IN THE HIGH COURT OF ZIMBABWE
KABASA J, with Assessors Mr. J Ndubiwa and Mr. J Zulu
HWANGE 2 and 3 March 2026

Criminal trial
M Cheda, for the state
C Muleza, for the accused

KABASA J On 2 September 2025 at around 0200hours the accused stabbed the now deceased, his estranged wife with a kitchen knife and she lost her life. He appeared before us on a charge of murder as defined in s47 (1) of the Criminal Law (Codification and Reform) Act [Chapter 9:23] and pleaded not guilty to the charge.

The allegations are that on this fateful day the accused went to where deceased was staying at Dali Sibanda's homestead and stabbed her several times. Her screams attracted one Sisasenkosi's attention who sought help from the village head. The village head in turn enlisted assistance from one Smiling and Joshua but when they got to the gate of Dali's homestead the accused ran out holding a knife and fled. The deceased was observed lying on the floor facing downwards. She lay there naked in a pool of blood and had injuries on the back, shoulder and chest.

The accused does not deny inflicting the injuries which led to the deceased's death, he also does not deny using a kitchen knife. He however said he was provoked after seeing a message on the deceased's phone which read "when are you coming to town my love. You said you were going to resolve the issue relating to children. I am still waiting." He suspected that this message was from a lover and got frustrated but when he sought for an explanation the now deceased removed the sim card from the phone and tore it up. He lost self-control and stabbed her.

The knife which was used to stab the now deceased had the following dimensions
Length of handle – 12cm

Width handle – 2,5cm
Length of blade – 19cm
Width of blade at wide end – 3cm
Width of blade tip – 2mm
Length of the knife – 31cm
Weight – 0,165kg

The postmortem report gave the cause of death as

1. Acute Cardiac Failure
2. Hemorrhagic shock
3. Hemothorax

The doctor who examined the deceased‘s body observed the following marks of violence:

1. Incisional wound left back (2x1x4cm) located on the superior margin of scapula bone and 14,5cm from the midline
2. Incisional wound (56 x 2cm x 6cm) located just below the left clavicle and 4cm from left shoulder, 10cm from the midline and 16cm from the nipple with a direction of top to bottom, left to right and front to back
3. Incisional wound (1x1cm) located 7,5cm from midline left upper chest
4. Incisional wound on the right occipital (2 x 1cm)
5. Blood on the face, neck, hands and left thigh

The evidence of the attending detail and Doctor Pesanai was admitted per section 314 of the Criminal Procedure and Evidence Act [Chapter 9:07]. Two witnesses testified, i.e. Sisasenkosi and Smiling. Their evidence was largely common cause. None of them witnessed the assault but reacted to the deceased’s screams.

The only issue is whether the accused was provoked, completely lost self-control and acted in the heat of the moment.

Section 239 of the Criminal Code provides that;

> "(1) If, after being provoked, a person does or omits to do anything resulting in the death of a person which would be an essential element of the crime of murder if done or omitted as the case may be with the intention or realization referred to in section forty-seven, the person shall be guilty of culpable homicide if, as a result of the provocation –
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> (a) he or she does not have the intention or realization referred to in section forty-seven or
> (b) he or she has the intention or realization referred to in section forty-seven but has completely lost his or her self-control, the provocation being sufficient to make a reasonable person in his or her position and circumstances lose his or her self-control."

The two-prolonged approach was explained by MATHONSI J (as he then was) in *S Ndlovu* HB 293-17.

The reaction to the provocation must be sudden, in the sense that the person provoked acts on the spur of the moment and in circumstances where he has temporarily lost his power of self-control and does not appreciate what he is doing (*Attorney General* v *Tobaiwa and Ors* 1980 ZLR 192)

We must say it was not easy to follow the accused's story, initially he said the now deceased who was his wife had left home for her parents' home a day before. He however later said she had left a month before the assault. He then sought to explain that he had gone to his in – laws' home with his sister but the deceased's mother told him that she would not be coming back to him. The efforts to mend the rift failed and he went back home with his sister. There was also mention of the fact that an uncle was going to reprimand them and that further discussions were to be held on a Monday. On the Monday he went with his brother but there was no resolution. His mother in law told him the now deceased was not there and she asked for the children but he refused to part with them stating that he would look after them.

This narration, confusing as it is was, painted a picture of discord between him and the now deceased and yet he sought to suggest that he related well with her.

Why he went to his in laws' home on the day of the fatal stabbing was not clear. He however said he went there at 9pm and saw this offensive message at 2am? What had changed from the time he tried to discuss the impasse with the help of his sister and later his brother for him to have gone to the in-laws' home on this fateful night?

If, as he said, he had been told that the now deceased was not coming back and that point was made clear when he was asked to surrender the children, what did he hope to achieve by going back to this home at night with no one to mediate? Was this the behavior expected of one whose earlier attempts with sister and later brother in tow were rebuffed?

If all he wanted was to try and cajole the now deceased to return home, why go at night?

Asked how many times he stabbed her he said only twice, once on the shoulder and once at the back. Why use a knife when he could have used his hands? Why try to minimize the number of times he stabbed her? The postmortem reflects several stab wounds. The description of the wounds gives the impression of one who was literally slicing through the now deceased's body.

If indeed he was beside himself with anger such that he did not know what he was doing, why he was so sure he stabbed her twice, once when she was standing and the next when she had fallen. His account of what he would have us believe is what happened does not show a person who was so angry as a result of being provoked to an extent of not appreciating what he was doing.

In any event the now deceased had left him a month prior to this stabbing and nothing suggested her willingness to go back to him. Under such circumstances why would he have been incensed by the message he said he saw? There really was nothing so intimate about that message to cause him to be so incensed as to lose self-control.

It is important to differentiate provocation where one for example stumbles on his wife being intimate with another man and a situation where one is angry because he has failed to have his way and expresses that anger by harming the one who has spurned his efforts at reconciliation.

He said when he saw the message she apologized but he got very angry because she had left him with the children for a reason he was not aware of. So the source of the anger was because she had left him? There was no spontaneity to his actions. He did not lose self-control

but merely meted out the punishment he felt the now deceased deserved for going back to her parents and spurning his attempts at reconciliation.

His story was difficult to follow and that happens when a person is weaving a story in order to justify that which cannot be justified.

The defence of provocation is not available to him. He was not so provoked as to lose self-control and acted in the heat of the moment.

Why would a person literally slice into another human being with a knife of the dimensions alluded to earlier on in this judgement? The marks of violence observed on the deceased could only have been inflicted by a person whose intention was to kill.

In any event it matters not whether he set out to kill and achieved that purpose or he realized the real risk or possibility that his conduct may cause death but continued nonetheless. Whichever one looks at it the offence committed is murder.

We therefore had no hesitation dismissing his lack luster story. Consequently we were satisfied the state proved its case beyond a reasonable doubt and accordingly find him guilty as charged.

Sentence

You are a 35 year old first offender. You have 5 children, all minors, aged 13, 10, 8, 5 and 3 years.

You have been in pre-trial incarceration for 6 months. You will live with the stigma of being labelled a murderer.

In aggravation is the fact that you followed your wife who had left you most probably because of abuse. You disrespected your in-laws' home by killing their daughter at their home.

You used a knife, literally slicing through the deceased. She must have died a very painful death and at the hands of a man she had 5 children with.

Gender-based violence has proved to be a cancer that is refusing to go away. Calls have been made at national level for society to shun gender based violence but the scourge is not abating.

The deceased's mother's victim impact statement made very sad reading. She had to destroy the hut in which the murder occurred because she is still haunted by the death of her daughter. She is undergoing counselling as she is grappling with the loss of her daughter and is now saddled with the responsibility of looking after the 5 children.

You did not try to assist the deceased after stabbing her but cowardly fled when you realized there were people who had come after hearing her loud screams.

The mitigatory factors are far outweighed by the aggravating factors. But for the 6 months you spent in pre-trial incarceration we would have imposed 20 years which is the presumptive penalty given the aggravating factors alluded to.

You are accordingly sentenced to 19 years imprisonment.

National Prosecuting Authority, state's legal practitioners
Legal Aid Directorate, accused's legal practitioners